

**FRANOCK ENTERPRISES, INC.
dba SERVICEMASTER ADVANTAGE
v SMITH**

22CF13797

DEFENDANT'S DEMURRER

This is a breach of contract dispute between Franock Enterprises, Inc. dba ServiceMaster Advantage ("Plaintiff") filed and Holly Smith ("Defendant.")

Now before the Court is Defendant's demurrer. The demurrer is unopposed.

The procedural history of this matter is convoluted. Plaintiff originally filed its Complaint on May 2, 2022. Plaintiff filed proof of service of the Complaint on August 4, 2022, showing that personal service had been effected on Defendant on August 3, 2022. Defendant did not file an Answer.

On March 20, 2023, Plaintiff filed its First Amended Complaint ("FAC") again alleging breach of contract but reducing the amount sought. A summons was issued at that time.

On May 3, 2023, a hearing was held for an Order to Show Cause as to why Plaintiff had not obtained a default judgment within one year of the first Complaint. According to the minute order, no appearances were made at that hearing.

On October 17, 2023, Plaintiff filed an ex parte application to allow for service by publication which the Court denied.

On October 18, 2023, the Court held a Case Management Conference ("CMC.") The CMC minute order stated:

Plaintiff has not filed a Proof of Service of the Summons and First Amended Complaint with the Court. The Court cannot proceed with any orders until the Proof of Service is filed.

On February 14, 2024 the Court held another CMC. The minute order stated:

Plaintiff has not filed a Proof of Service of the Summons and First Amended Complaint with the Court. The Court cannot proceed with any orders until the Proof of Service is filed. The plaintiff was served an OSC [CRC 3.740] on May 2, 2022, mandating service within 180 days and obtaining judgment within 360 days. These timeframes have not been met. An OSC re: Dismissal and the next

Case Management Conference (CMC) is set for June 5, 2024, at 1:30 p.m. in Dept. 4.

At the June 5, 2024, and November 6, 2024 CMCs, the Court's minute orders again reflect that no proof of service of the FAC had been filed and that the Court could not proceed with any orders until proof of service was filed.

After the March 5, 2025 CMC, the Court's minute order stated:

Plaintiff has not filed proof of service of the Amended Summons and Complaint with the Court. The matter is scheduled for an OSC re Dismissal pursuant to Code of Civil Procedure 583.210 on June 11, 2025, at 1:30pm in Dept. 4.

On May 29, 2025 Defendant filed a demurrer. At the request of Plaintiff's counsel, the OSC re Dismissal was postponed until October 22, 2025. The continuance was requested because Defendant had filed her demurrer.

As the Court has stated numerous times previously, Plaintiff has failed to file a proof of service of summons of the FAC. As such, the Court has no jurisdiction over Defendant. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 805.) The Court cannot consider the Defendant's demurrer where the Court has no jurisdiction over the Defendant. This shortcoming is underscored by defendant's pleading labelled as "Demurrer to Complaint", a pleading that was rendered moot by the filing of the FAC.

Accordingly, the demurrer is **OVERRULED**, without prejudice, to refile at such time as defendant is properly served with the FAC..

The clerk shall provide notice of this ruling to the parties forthwith. No further Formal Order is required.

HUGHES VS. FCA US, LLC, ET AL

24CV47640

**DEFENDANT'S MOTION FOR JUDGMENT ON THE
PLEADINGS AS TO PLAINTIFF HUGHES**

On the Court's Motion this matter is continued to August 1, 2025, at 9:00 a.m. in Dept.
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